



Todd DeMelle <tdemelle@gmail.com>

Status Inquiry - FORAD for 42 Mill Street, Westwood (DEP #338-0594)

Todd DeMelle <tdemelle@gmail.com>
To: Tyler Ferrick <Tyler.Ferrick@mass.gov>

Wed, Oct 15, 2025 at 2:46 PM

Thanks, Tyler

The WCC hearing to review the dam NOI tonight was just continued. I've prepared a presentation with some of the issues and questions that have come up in my research that I hoped to present. (What a complicated case!) With the continuation, there are some points I'd like to research further.

One of the biggest gaps in the documentation that I've seen is the DEP reversal on the run-of-river classification in 2016. That is one of the questions that the unsent letter from town counsel in 2021 asked.

With the FORAD now expired and a new NOI under review, I wondered if there is any additional DEP record of what happened to change that classification between the denial in the SORAD on 8/25/2016 and the issuance of the FORAD on 12/19/2016?

Also, I missed the appeal windows for the FORAD, the extension of the FORAD and the SOC. Is there a best way for me to monitor or be informed of opportunities to participate in proceedings regarding this property going forward? Are there any proceedings regarding the property currently in progress?

Thank you,
Todd

Sent from my iPhone
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